
Appeal Decision

Site visit made on 23 June 2026

by Timothy King BA(Hons), MRTPI

an Inspector appointed by the Secretary of State

Decision date: 21st September 2026

Appeal Ref: 6003001

Eyhurst Farm House, Outwood lane, Kingswood, KT20 6JS

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant [outline] planning permission.
 - The appeal is made by Reg Steel against the decision of Reigate and Banstead Borough Council.
 - The application Ref is 25/01468/F.
 - The development proposed is the demolition of existing detached dwelling and erection of a replacement single storey dwelling.
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Decision

1. The appeal is dismissed.

Preliminary Matter

2. The application was submitted in August 2025, at which time the previous iteration of the National Planning Framework (the Framework), published in December 2024, was in effect. However, the concept of grey belt has not been raised by either of the main parties.
3. Things have moved on further since the publication of the Framework's current version, and I have, therefore, given full regard in my assessment to the latest government guidance on new development within the Green Belt.

Main Issues.

4. Taking into account that the appeal site is located in the Metropolitan Green Belt, and also the Council's reasons for refusal the main issues in this case are:
 - 1) Whether the appeal site can be considered as grey belt and, if so, whether it can be considered as 'not inappropriate' development within the Green Belt, which would mean that the effect on the openness of the Green Belt would not be a material consideration;
 - 2) whether the proposal can be considered as a replacement building;
 - 3) the effect of the development on the character and appearance of the surrounding area;
 - 4) the effect on the significance of the nearby heritage assets; and
 - 5) if inappropriate development, whether the harm by reason of inappropriateness and any other harm is clearly outweighed by other considerations so as to amount to the very special circumstances necessary to justify the development.

Reasons

Development within the Green Belt

5. The Framework discusses the concept of grey belt. This is considered as land within the Green Belt which comprises previously developed land (PDL) and/or other land which, in either case, does not strongly contribute to any of purposes (a), (b) or (d) in Framework policy GB2. Such criteria relates to whether the piece of land on which new development is proposed serves to check the unrestricted sprawl of large built-up areas, if it prevents neighbouring towns merging into one another, or if it preserves the setting and special character of historic towns. In this particular instance, from my observations and also the evidence produced, I have found that the appeal site, which is within the planning unit, but beyond the curtilage of Eyhurst Farm House, is not PDL. However, it does not perform strongly on any of the above points, and I consider that the land meets the grey belt classification test.
6. That said, identifying land as grey belt is only the first stage. Framework GB7(1)(g) identifies a number of requirements, all of which still need to be satisfied before the proposal can be seen as not inappropriate development within the Green Belt. Amongst other things, two of the requirements are that the type of development proposed must meet an evidenced unmet need, and that the site is in a sustainable location, with particular reference to Framework policy TR3.
7. The single dwelling, as is here proposed, although it is not in a sustainable location, would be unlikely to generate a significant amount of movement in the context of the area within which it would be situated. However, that apart, I have not been provided with any details to illustrate that there is an evidenced unmet need for additional housing in this area; particularly as one new dwelling would obviously represent a very limited contribution to the Council's housing stock.
8. In the absence of any such justification policy GB7 does not apply. Instead, policy GB6, which concerns the control of inappropriate development within the Green Belt, and the weight given to resulting harm is applicable. By definition, inappropriate development within is harmful thereto, and should not be approved except in very special circumstances. Such circumstances will not exist unless the harm by reason of inappropriateness and any other harm is clearly outweighed by other considerations, with substantial weight given to Green Belt harm including its effect on openness.

Openness

9. Openness is one of the essential characteristics of Green Belt, but it is not simply a question of whether a development can be seen. In past judgements the courts have treated openness as a broad planning concept. In *Turner v SSCLG* [2016] EWCA Civ 466, the Court of Appeal recognised that openness can have both spatial and visual aspects. A subsequent Supreme Court judgement, *R (Samuel Smith Old Brewery (Tadcaster) v North Yorkshire County Council* [2020] UKSC 3, agreed with *Turner* and also held that visual impact may be relevant but is not an essential or mandatory component in every case. Instead, the assessment of such is a matter of planning judgement in the particular circumstances.
10. In this instance the proposal would involve the erection of a 3-bed, single-storey, flat-roofed dwelling on an open green field, within the ownership and the planning

unit of Eyhurst Farm House. The appellant terms the proposed dwelling as a replacement building, which I address below. Notwithstanding this, moving the building into an open field will almost certainly trigger the requirements to demonstrate very special circumstances. I find this a case in point and, from my observations, it is clear that the proposed dwelling would have a materially greater effect on the Green Belt's openness, both visually and spatially, than is the position with the existing building in its own particular setting.

Replacement building

11. As part of the proposal the appellant is intending to demolish 'The Stables', a building which is termed as 'curtilage listed'— meaning it enjoys the same level of protection as Eyhurst Farm House, the principal, Grade II listed building within the planning unit.
12. The appellant raises two matters here. First, he mentions that the proposed dwelling would represent a replacement building for the purposes of Green Belt policy, in an attempt to demonstrate that the proposal would not represent inappropriate development. Second, he refers to a previous planning permission (ref 12/01354) for a detached dwelling, granted in 2013, the footprint of which crosses over the footprint of the newly proposed dwelling. On this point the development plan at that time was the Reigate & Banstead Local Plan, 2005 and the then policies would have been applied to the proposal at that time. This document was superseded by the Council's Core Strategy, and also its Development Management Plan (DMP). The former was adopted in 2014, and reviewed in both 2019 and 2024; the latter being adopted in 2019. The above planning permission expired in 2018, unimplemented and, given the change in policies, this significantly diminishes its materiality.
13. On the first point the appellant says that the proposed dwelling would not be in the same curtilage as the stables building, but it does lie within the arc of the existing complex of the building, Although, the stables building is curtilage listed the two buildings, although in near proximity, are located on the opposite side of the access driveway.
14. Curtilage is a legal term and defines an area of land in relation to a building. The essential point in the relationship of the dwelling to its curtilage is that this must be functional, and not merely spatial. This was addressed in the judgement of *Methuen-Campbell v Walters* [1979] 1 QB 525 where it was held that for land to fall within the curtilage of a building there should be an intimate association, such as to lead to the conclusion that it can be considered as part of the building.
15. The above case involved whether a paddock in the grounds of a house could be seen as being within the curtilage of the house. Physically, the paddock was well apart from the house, though was contiguous with its garden. Here I draw a parallel with the current case.
16. There are several authorities on the matter which I set out below, that illustrate, in the planning context, the concept of residential curtilage and also its status when also taking into account associated garden land.
17. Curtilage is a matter of fact and degree and is typically a garden area which has an intimate relationship to the dwelling it serves. Walking across the wider planning unit at my site visit I identified the extent of the farmhouse's close garden area

which can reasonably be considered as residential curtilage. The open field, where the proposed dwelling would be sited lies beyond this and, on this basis, the field cannot be reasonably considered as curtilage. As illustrated, case law would support this approach.

18. Replacing a building in the Green Belt is not inappropriate development under Framework policy GB7(1)(b) provided the new building is in the same use and is not materially larger than the one it replaces. I understand that the stables building is used as a dwelling, but the appellant's figures as to its floorspace are disputed by the Council. The appellant says that the proposed building's floorspace would be less than currently exists, but has factored in the floorspace approved under planning permission 23/02307/HHOLD in February 2024 as, although unimplemented, the permission remains extant.
19. The term 'not materially larger' means that the new building cannot be significantly larger in volume, height or footprint than the structure it would replace. Further, the baseline for the assessment is the existing building to be replaced or, in other words, the actual physical development at the time of the application made. This was confirmed by the High Court in *Athlone House Ltd v SSCLG* [2015] where the judge held that the baseline is the extent of the physical built development on the site as a question of fact. This means what is physically there, not what could theoretically be built under an unimplemented planning permission. This could, though, be relevant at the very special circumstances stage of the assessment under policy GB6 as a fallback that has a realistic prospect of being implemented.
20. Nonetheless, returning to the proximity of the stables building to the position of the proposed development, whilst a replacement building on the Green Belt does not have to occupy the exact same footprint, relocating it a significant distance away, as would be the case here - even within the same planning unit - as also applies here, considerably lessens the 'replacement' exception.
21. In this particular instance, for the above reasons, I am of the view that the proposal cannot be considered a replacement building. As such, I have concluded that the proposal represents inappropriate development within the Green Belt and, crucially, one which would adversely impact on its openness. Accordingly, the proposal is in conflict with the Framework and also DMP policy NHE5.

Character and appearance

22. The submitted drawing no 24-07-03b which depicts the proposed building's elevations is to a small scale (1:100) and has no annotations in terms of detailing or external materials to be used. What is evident is an expansive footprint, and a consequent relative sprawl of built form due to the intended single storey height and desired accommodation. This is untypical of the local vernacular.
23. DMP policy DES1 requires that all new development will be expected to be of a high quality of design that will make a contribution to the character and appearance of its surroundings. Further, it should promote and reinforce local distinctiveness and have due regard to, amongst other things, local layout, scale, massing, height, roofscapes and relationship to neighbouring buildings.
24. The appellant says that the design would represent a contrasting contemporary design rather than vie with the appearance of the Farm House. He considers that the proposal would have a benefit in terms of reduced impact on the surrounding

area with regard to overall height and visibility above the well established boundary hedging and trees. However, in its contextual setting, I consider that its extensive footprint and design would represent an obtrusive form of development which does not sympathetically relate to its surroundings. The new planting to screen the development would not mitigate as this would appear to accept that the new building's design and appearance is out of character and requires screening.

25. I conclude that the proposal would be at odds with the aims and requirements of DMP policy DES1.

Loss of 'The Stables'

26. The Stables building appears of Victorian age with external features redolent of its time. Its appearance and contextual location illustrates the once functional physical arrangement and this still contributes to the setting of Eyhurst Farm House.
27. Framework policy HE5 requires that development proposals affecting heritage assets should be accompanied by an assessment of the significance of the assets affected (including any contribution made by their setting) and of the potential effect of the proposal on their significance. The appellant has provided a Heritage Statement, but this is very limited in content as regards a required and crucial analysis and justifying the loss of The Stables. The Statement merely says that the building's removal would be beneficial to the setting of the Farm House as it is located closer to the building than would be the proposed development and would open up views to the north west of this listed building.
28. There is no mention of the age, design and architectural features of the Stables building and its physical contribution, save for making the point that it is of greater overall height than that of the proposed dwelling. Moreover, the limited detail of the submitted drawings come across as little more than indicative to show what could theoretically be built on the designated footprint.
29. Policy HE4 of the Framework says that heritage assets, as an irreplaceable resource, should be conserved in a manner appropriate to their significance. To achieve this, proposals for development which would affect the significance of heritage asset, including any contribution made by their setting, should maintain or secure a use consistent with their conservation and avoid or minimise harm to the significance of heritage assets, and instead conserve this significance.
30. Any harm to, or loss of, the significance of a designated heritage asset should have a clear and convincing justification and, here, I am not of the view that the proposal has sufficient supporting material to address this requirement. Accordingly, the resultant impact from the intended loss of the building has not been addressed.

Effect on the listed Farmhouse's setting

31. Eyhurst Farm House, is a distinctive timber-framed building with red-brick dressings. It dates from the 14th /15th century, although some subsequent alterations have been made.
32. Setting can contribute to the special interest/significance of a listed building, it can also allow that significance to be appreciated. A proposal may therefore impact not only on a building itself but also on that building's setting, which is also concerned with views both towards and out from the listed building.

33. Framework Policy HE6 says that when considering the potential effect of a development proposal on the significance of a designated heritage asset, substantial weight should be given to the asset's conservation, and the more important the asset, the greater the weight should be. This is irrespective of whether any potential impact amounts to a positive effect or results in harm, substantial harm, or total loss of its significance.
34. Notwithstanding the limitations of the submitted drawings I must agree with the Council that accurate and annotated sections, also with contours, should have been produced showing the degree of impact from the development.
35. The policy says that, where a development proposal would harm the significance of a designated heritage asset the effect on the asset and its significance should be weighed against any public benefits resulting from the proposal. Here, there would be little, if any, public benefits as the proposal represents, instead, a private aspiration.
36. Taken both the above points together, in the absence of adequate illustrative material or any detailed analysis to show otherwise I must conclude that the harm resulting from the loss of the curtilage listed building and any resultant impact on the setting of the principal listed building has not been justified. Accordingly, I conclude that the proposal is in clear conflict with the aims and requirements of both the Framework and DMP policy NHE9.

Other Matter

37. Given my findings that the proposal is unacceptable on other substantive grounds it is not necessary that I explore any ecological harm that might result from the development.

Planning Balance

38. I have found harm on all the main issues. Any significant reliance on the 2013 planning permission, long since expired, is unrealistic, not least due to the material change in circumstances described in the past thirteen years.
39. The proposal cannot be reasonably considered as a replacement building and it represents inappropriate development within the Green Belt which would unduly impact on its openness. The content of the submitted plans and drawings is inadequate and such small scale drawings are illustratively vague and should be to a larger scale in order to promote the development, irrespective of the proposal's other shortcomings. Further, the proposal would seriously impact on the significance on the heritage assets.
40. The submission does not justify the proposed development, and I consider that any fallback position which might result from the additional floorspace should the 2024 planning permission be implemented is of limited value.
41. In the circumstances the very special circumstances necessary to outweigh the harm resulting from inappropriate development within the Green Belt along with the additional harm described not been demonstrated.

Conclusion

42. For the above reasons, and having had regard to all matters raised, I have concluded that the proposal is unacceptable and, in the absence of evidence to show otherwise, it would result in adverse impact and harm. The development would be contrary to advice and guidance within the Framework and is also in conflict with the development plan, as a whole.

43. The appeal, therefore, does not succeed,

Timothy King

INSPECTOR